

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Filed:

-----X
STEPHEN TRIPP,

Index No.:

Plaintiff(s),

Plaintiff designates Queens
County as place of trial

-against-

CITY OF NEW YORK, NEW YORK CITY HEALTH
AND HOSPITALS CORPORATION, ELMHURST
HOSPITAL CENTER, OFFICER "JOHN" CUTOLO,
OFFICER "JOHN" RAMNARINE and OFFICER
"JOHN" HASAN, (first names of arresting officers
being unknown and fictitious),

The basis of venue is
Place of arrest

SUMMONS

Defendant(s).
-----X

To the above named Defendant(s)

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
September 3, 2021

Defendant(s)' address(es):

Defendant CITY OF NEW YORK
100 Church Street
New York, NY 10007

Defendant NEW YORK CITY HEALTH
AND HOSPITALS CORPORATION
125 Worth Street, Room 527
New York, NY 10013

Defendant ELMHURST HOSPITAL CENTER
79-01 Broadway
Elmhurst, NY 11373


CARY H. KAPLAN, ESQ.
KAPLAN & KAPLAN, ESQS.
Attorneys for Plaintiff(s)
186 Joralemon St.-Suite 1202
Brooklyn, New York 11201
(718) 596-8800

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
STEPHEN TRIPP,

Plaintiff(s),

Index No.:

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, NEW YORK CITY
HEALTH AND HOSPITALS CORPORATION,
ELMHURST HOSPITAL CENTER, OFFICER
"JOHN" CUTOLO, OFFICER "JOHN"
RAMNARINE and OFFICER "JOHN" HASAN,
(first names of arresting officers being
unknown and fictitious),

Defendant(s).
-----X

Plaintiff, by his attorneys, KAPLAN & KAPLAN, ESQS., complaining of the defendant(s),
respectfully alleges, upon information and belief, as follows:

PARTIES

1. That, at all times herein mentioned, plaintiff was a resident of the County of Queens, City and State of New York.
2. That, at all times herein mentioned, plaintiff was entitled to the full protection of the laws and the Constitution of the United States of America, and the laws and the Constitution of the State of New York.
3. That at all times hereinafter mentioned the defendant, CITY OF NEW YORK (hereinafter "CITY"), was a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
4. That, at all times herein mentioned, defendant NEW YORK CITY HEALTH AND HOSPITALS CORPORATION (hereinafter "NYCHHC") was, and still is a duly authorized public authority and/or public benefit corporation, and/or police department, authorized to perform all functions of a police

department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, the City of New York.

5. That, at all times herein mentioned, defendant NYCHHC was, and still is a sub-division of the defendant CITY.

6. That, at all times herein mentioned, defendant NYCHHC owned a hospital facility known as Elmhurst Hospital Center (Hereafter defendant ELMHURST).

7. That, at all times herein mentioned, defendant ELMHURST was located at 7901 Broadway, Queens, New York.

8. That, at all times herein mentioned, defendant NYCHHC operated defendant ELMHURST.

9. That, at all times herein mentioned, defendant NYCHHC controlled defendant ELMHURST.

10. That, at all times herein mentioned, defendant NYCHHC maintained defendant ELMHURST.

11. That, Notice of Claim, in duplicate, upon which the within action is founded, was served upon the municipal defendant(s) by their agent designated for receipt of same, within ninety (90) days of the occurrence.

12. That, more than thirty (30) days have elapsed since the claim was presented for adjustment, and municipal defendant(s) have neglected or refused to make an adjustment or payment thereon.

13. That, this action was commenced within one (1) year from the date of the accrual of the within causes of action.

14. That, a 50H hearing was duly held by defendants and plaintiff duly testified and submitted to an examination, pursuant to the statute.

15. That, at all times herein mentioned, defendant CITY, its agents, servants and employees, maintained, supervised, managed, operated and/or controlled defendant NYCHHC.

16. That, at all times herein mentioned, defendant NYCHHC, its agents, servants, officers and employees, maintained, supervised, managed, operated and/or controlled defendant ELMHURST.

17. That, at all times herein mentioned, defendant NYCHHC, hired, trained and/or supervised various physicians, nurses, technicians, security/police officers, and other individuals, for the purpose of operating defendant ELMHURST.

18. That, at all times herein mentioned, defendant OFFICER "JOHN" CUTOLO was a an agent, servant, officer and/or employee of defendant NYCHHC.

19. That, at all times herein mentioned, defendant OFFICER "JOHN" CUTOLO was a sworn law enforcement officer.

20. That, at all times herein mentioned, defendant OFFICER "JOHN" CUTOLO was acting under the supervision of defendant NYCHHC.

21. That, at all times herein mentioned, defendant OFFICER "JOHN" CUTOLO was acting according to official duties.

22. That, at all times herein mentioned, defendant OFFICER "JOHN" CUTOLO was acting within the scope of his employment.

23. That, at all times herein mentioned, defendant OFFICER "JOHN" RAMNARINE was a an agent, servant, officer and/or employee of defendant NYCHHC.

24. That, at all times herein mentioned, defendant OFFICER "JOHN" RAMNARINE was a sworn law enforcement officer.

25. That, at all times herein mentioned, defendant OFFICER "JOHN" RAMNARINE was acting under the supervision of defendant NYCHHC.

26. That, at all times herein mentioned, defendant OFFICER "JOHN" RAMNARINE was

acting according to official duties.

27. That, at all times herein mentioned, defendant OFFICER "JOHN" RAMNARINE was acting within the scope of his employment.

28. That, at all times herein mentioned, defendant OFFICER "JOHN" HASAN was a an agent, servant, officer and/or employee of defendant NYCHHC.

29. That, at all times herein mentioned, defendant OFFICER "JOHN" HASAN was a sworn law enforcement officer.

30. That, at all times herein mentioned, defendant OFFICER "JOHN" HASAN was acting under the supervision of defendant NYCHHC.

31. That, at all times herein mentioned, defendant OFFICER "JOHN" HASAN was acting according to official duties.

32. That, at all times herein mentioned, defendant OFFICER "JOHN" HASAN was acting within the scope of his employment.

33. That, at all times herein mentioned, defendant OFFICER "JOHN" CUTOLO wore Badge/Tax ID #1415,

34. That, at all times herein mentioned, defendant OFFICER "JOHN" RANMARINE wore Badge/Tax ID #1839.

35. That, at all times herein mentioned, defendant OFFICER "JOHN" HASAN wore Badge/Tax ID #1691.

36. That, at all times herein mentioned, the defendant(s), either personally or through their agents, servants, officers and/or employees, were acting under color of law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of defendant CITY and/or defendant NYCHHC.

FACTS

37. That, on or about 11/6/2020, at approximately 3:45 a.m., plaintiff was lawfully upon the aforesaid premises visiting his grandfather, a patient in the Intensive Care Unit at Elmhurst Hospital Center, located at 79-01 Broadway, County of Queens, City and State of New York.

38. That, at the aforesaid time and place, plaintiff entered the lobby of said hospital and proceeded to the elevators.

39. That, plaintiff was not stopped or asked for identification.

40. That, while waiting for the elevator, plaintiff was approached by one of the aforesaid defendant officers, who demanded that plaintiff show him a visitor's pass.

41. That, plaintiff informed said defendant officer that no one was present at the reception desk or in the lobby and no one had stopped him to tell him he needed a visitor's pass.

42. That, said defendant officer began harassing plaintiff, called him a name, and used unnecessarily hostile and derogatory language towards plaintiff.

43. That, while plaintiff was speaking with the first defendant officer, a second defendant officer, suddenly and without warning, grabbed plaintiff from behind, about the neck, and placed him in a choke hold.

44. That, said defendant officer slammed plaintiff's head against a wall, without warning, probable cause or justification.

45. That, while plaintiff was being held in a choke hold by one defendant officer, a second defendant officer jumped in and attempted to take plaintiff to the ground, and a third defendant officer attempted to handcuff him.

46. That, a superior officer arrived and ordered defendant officers to get off of plaintiff.

47. That, plaintiff requested medical attention.

48. That, the aforesaid superior officer informed plaintiff that he would have to arrest him

if he insisted on receiving medical attention; or he could leave without receiving medical attention and without being arrested.

49. That, plaintiff left without receiving medical attention.

50. That, by reason of the aforesaid, said defendant officers' actions and words placed plaintiff in imminent fear of bodily safety and for his life.

51. That said defendant officers did assault, batter, restrain, falsely arrest and imprison plaintiff, without probable cause or justification.

52. That defendants CITY and/or NYCHHC and/or ELMHURST negligently hired, retained, trained and supervised defendant OFFICER "JOHN" CUTOLO.

53. That defendants CITY and/or NYCHHC and/or ELMHURST negligently hired, retained, trained and supervised defendant OFFICER "JOHN" RAMNARINE.

54. That defendants CITY and/or NYCHHC and/or ELMHURST negligently hired, retained, trained and supervised defendant OFFICER "JOHN" HASAN.

AS AND FOR A FIRST CAUSE OF ACTION
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. SECTION 1983

55. That, this plaintiff repeats, reiterates and realleges each and every allegation contained in each and every preceding paragraph herein of this complaint, inclusive, with the same force and effect as though more fully set forth at length herein.

56. All of the aforementioned acts of defendants, their agents, servants and/or employees, were carried out under the color of law, while defendant officers were wearing law enforcement badges and official uniforms.

57. All of the aforementioned acts of the defendants, their agents, servants and/or employees, deprived plaintiff of rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. Section 1983.

58. The acts complained of were carried out by the aforementioned defendant law

enforcement officer/agent in their capacities as police officers, with all the actual and/or apparent authority attendant thereto.

59. The acts complained of were carried out by the aforementioned defendant officer/agents in their capacities as law enforcement officer agents, pursuant to the customs, usages, practices, procedures, and rules of the defendant(s), and under the supervision of ranking officers and/or officials.

60. Defendant(s), collectively and individually, while acting under color of state law, engaged in conduct, which constituted defendants(s)' customs, usages, practices, procedures or rules, in violation of the Constitution of the United States.

61. That, as a result of the foregoing, plaintiff sustained, and continues to sustain, *inter alia*, loss of liberty, emotional distress, personal, psychological and bodily injuries, mental anguish, shock, fright, apprehension, severe humiliation and embarrassment, damage to her reputation and occupation, and deprivation of her Civil and Constitutional Rights, plaintiff's liberty was restricted for an extended period of time, and she was put in fear for personal safety, was humiliated and subjected to handcuffing, and other physical restraints, was falsely and maliciously prosecuted and subjected to abuse of process, without permission, consent, probable cause, authority or privilege.

62. That, the foregoing was due to the willfulness, unlawfulness, negligence and/or carelessness of the defendants, their agents, servants and/or employees in the operation, management, maintenance, supervision and control of said police department, and negligent hiring and/or retention of the aforesaid defendant law enforcement officer(s)/agent(s), without any culpable conduct on the part of the plaintiff herein.

63. As a result of the foregoing, plaintiff is entitled judgement against defendant(s) for damages in a sum exceeding the monetary jurisdiction of all lower courts, individually and collectively, and demands judgment against defendant(s) commensurate with same.

AS AND FOR A SECOND CAUSE OF ACTION
FALSE ARREST UNDER 42 U.S.C. SECTION 1983

64. That, this plaintiff repeats, reiterates and realleges each and every allegation contained in each and every preceding paragraph herein of this complaint, inclusive, with the same force and effect as though more fully set forth at length herein.

65. As a result of defendant(s)' aforementioned conduct, plaintiff was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined and incarcerated by the defendants, without probable cause, privilege or consent.

66. That, as a result of the foregoing, plaintiff sustained, and continues to sustain, *inter alia*, loss of liberty, emotional distress, personal, psychological and bodily injuries, mental anguish, shock, fright, apprehension, severe humiliation and embarrassment, damage to her reputation and occupation, and deprivation of her Civil and Constitutional Rights, plaintiff's liberty was restricted for an extended period of time, and she was put in fear for personal safety and was humiliated, without permission, consent, probable cause, authority or privilege.

67. That, the foregoing was due to the willfulness, unlawfulness, negligence and/or carelessness of the defendants, their agents, servants and/or employees in the operation, management, maintenance, supervision and control of said police department, and negligent hiring and/or retention of the aforesaid defendant law enforcement officers/agents, without any culpable conduct on the part of the plaintiff herein.

68. As a result of the foregoing, plaintiff is entitled judgement against defendant(s) for damages in a sum exceeding the monetary jurisdiction of all lower courts, individually and collectively, and demands judgment against defendant(s) commensurate with same.

AS AND FOR A THIRD CAUSE OF ACTION
ASSAULT AND BATTERY

69. That, this plaintiff repeats, reiterates and realleges each and every allegation contained in each and every preceding paragraph herein of this complaint, inclusive, with the same force and effect as though more fully set forth at length herein.

70. That, by reason of the foregoing, defendants, by their agents, servants, officers and/or employees did assault and/or batter plaintiff.

71. That, as a result of the foregoing, plaintiff sustained serious personal injury, both physical and psychological, was put in fear for his safety, suffered emotional distress, mental anguish, shock, fright, apprehension, psychological injuries, bodily injuries, embarrassment, humiliation, and damage to reputation.

72. That, the foregoing was due to the willfulness, malice, unlawfulness, negligence and/or carelessness of the defendants, their agents, servants and/or employees, without any culpable conduct on the part of the plaintiff herein.

73. That, as a result of the foregoing, plaintiff is entitled judgement against defendant(s) for damages in a sum exceeding the monetary jurisdiction of all lower courts, individually and collectively, and demands judgment against defendant(s) commensurate with same.

AS AND FOR A FOURTH CAUSE OF ACTION
NEGLIGENT HIRING, TRAINING, SUPERVISION AND RETENTION

74. That, this plaintiff repeats, reiterates and realleges each and every allegation contained in each and every preceding paragraph herein of this complaint, inclusive, with the same force and effect as though more fully set forth at length herein.

75. That, as a result of the foregoing, plaintiff sustained serious personal injury, both physical and psychological, was put in fear for her safety, suffered emotional distress, mental anguish, shock,

fright, apprehension, psychological injuries, bodily injuries, embarrassment, humiliation, and damage to reputation.

76. That, the foregoing was due to defendants' carelessness, negligence, negligent employment, negligent hiring, negligent retention, negligent supervision and negligent training of defendants OFFICER "JOHN" CUTOLO, OFFICER "JOHN" RAMNARINE and OFFICER "JOHN" HASAN without any culpable conduct on the part of plaintiff herein.

77. That, as a result of the foregoing, plaintiff is entitled judgment against defendant(s) for damages in a sum exceeding the monetary jurisdiction of all lower courts, individually and collectively, and demands judgment against defendant(s) commensurate with same.

WHEREFORE, plaintiff demands judgment against the defendant(s) in accordance with the above allegations on the First Cause of Action in a sum exceeding the monetary jurisdiction of all lower Courts; on the Second Cause of Action in a sum exceeding the monetary jurisdiction of all lower Courts; on the Third Cause of Action in a sum exceeding the monetary jurisdiction of all lower Courts; on the Fourth Cause of Action in a sum exceeding the monetary jurisdiction of all lower Courts; and prays for relief commensurate therewith; together with such other and further relief deemed just, fair and equitable, and legal fees, costs and disbursement of prosecuting this action.

Dated: Brooklyn, New York
September 3, 2021

Yours, etc.,

LAW OFFICE OF KAPLAN & KAPLAN

By: 

Cary H. Kaplan, Esq.

Attorneys for Plaintiff

186 Joralemon Street, Suite 1202

Brooklyn, NY 11201

(718) 596-8800

Our File No.: 72097

ATTORNEY'S VERIFICATION

CARY HUNTER KAPLAN, an attorney duly licensed to practice law in The State of New York, hereby affirms the truth of the following under the penalty of perjury:

1. I am a partner of the Law Office of Kaplan & Kaplan, attorneys for plaintiff(s) herein, and I am fully familiar with the facts and circumstances of this matter based upon working with the case file maintained in my office.
2. I have read the foregoing **COMPLAINT** and know the contents thereof.
3. Same is true to my knowledge, except as to the matters therein stated to be alleged on information and belief; and, as to those matters, I believe them to be true.
4. The reason I makes this verification is that Plaintiff resides in a county other than the one in which I maintain my law office.

Dated: Brooklyn, New York

Oct 7, 2021


CARY HUNTER KAPLAN